

Case Summary

Parties Involved: AIG Hospitals, AIIMS Delhi, AVSM, All India Institute of Medical Sciences, All In

Case Laws Referenced: Page 11, Page 12, Page 15, Property Act 2008, Reclaim the Night, Red

Jurisdiction: Andhra, Bengaluru, Bihar, CRMI, Delhi, England, India, Jodhpur, Kolkata, Mumbai, M

2024 INSC 613 Page 1 of 16 Reportable IN THE SUPREME COURT OF INDIA CRIMINAL ORIGINAL JURISDICTION SMW CrI No 2 of 2024 IN RE ALLEGED RAPE AND MURDER INCIDENT OF A TRAINEE DOCTOR IN R.G. KAR MEDICAL COLLEGE AND HOSPITAL, KOLKATA AND RELATED ISSUES Versus Page 2 of 16 O R D E R 1. On 9 August, 2024, a thirty -one year old postgraduate doctor at RG Kar Medical College Hospital, Kolkata who was on a thirty six hour duty shift was murdered and allegedly raped inside the seminar room of the hospital. As horrific details have emerged in the course of media reportage, t he brutality of the sexual assault and the nature of the crime have shocked the conscience of the Nation. Writ petitions were instituted before the Calcutta High Court seeking among other things, a court -monitored investigation of the crime and the conduct of the hospital authorities, including the role of the Principal of the medical college and other officials by a special team of investigating officers. Medical Associations have consistently raised issues o f the lack of workplace safety in health care institutions. Hospitals and medical care facilities are open throughout the day and night. Medical professionals - doctors, nurses and paramedic staff - work round the clock. Such Page 4 of 16 allegations are immediately followed by violence against medical professionals..